



Criminal Appeal (Northern Ireland) Act 1968

1968 CHAPTER 21

An Act to consolidate the enactments relating to the Court of Criminal Appeal in Northern Ireland, the jurisdiction of the Court and appeals therefrom to the House of Lords.
[8th May 1968]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

THE COURT OF CRIMINAL APPEAL

1.—(1) The Court of Criminal Appeal in Northern Ireland The Court constituted by the Criminal Appeal (Northern Ireland) Act 1930 1930 c. 45. shall continue in existence with the same jurisdiction as heretofore, and is in this Act referred to either as “the Court of Criminal Appeal” or as “the Court”.

(2) All the judges of the Supreme Court shall be judges of the Court.

(3) The Court shall be a superior court of record and shall, for the purposes and subject to the provisions of this Act, have full power to determine, in accordance with this Act, any question necessary to be determined for the purpose of doing justice in the case before the Court.

(4) Except as provided by this Act, the determination by the Court of any appeal or other matter which they have power to determine shall be final and no appeal shall lie from the Court to any other court.

PART I
Sittings.

2.—(1) For the purpose of hearing and determining appeals, or any matter preliminary or incidental to an appeal, the Court of Criminal Appeal shall be summoned in accordance with directions given by the Lord Chief Justice and shall sit in Belfast except in cases where the Lord Chief Justice gives special directions that it shall sit at some other place.

(2) Provision shall be made by rules of court for securing sittings of the court, if necessary, during vacation.

Assistance for
transaction of
business of
the Court.

3.—(1) Any such person as follows, namely,—

(a) a person who, not being a judge of the Court of Appeal or the High Court, has held the office of a judge of either of those courts ;

(b) a person who, neither being a judge of the Court of Appeal or the High Court nor having held the office of a judge of either of those courts, holds or has held the office of a Lord of Appeal in Ordinary and, on his appointment to that office, was qualified for appointment as a judge of the High Court or the Court of Appeal,

may at any time, at the request of the Lord Chief Justice, sit and act as a judge of the Court of Criminal Appeal.

(2) Every person while sitting and acting under this section shall have all the jurisdiction, powers and privileges of a judge of the Court of Criminal Appeal, but shall not otherwise be deemed to be a judge of the Court or to have ceased to be a member of any other tribunal of which he is a member.

(3) A person who has sat and acted under this section shall, although the period has expired during which he was requested so to sit and act, attend the sittings of the Court for the purpose of giving judgment in, or otherwise acting in relation to, any case heard by the Court while he so sat and acted.

(4) For any period during which a person (other than one holding office as a Lord of Appeal in Ordinary) sits and acts under this section there may be paid to him, out of moneys provided by Parliament, such remuneration and allowances as the Treasury may, after consultation with the Lord Chief Justice, determine.

Constitution
of the Court
for hearing
appeals.

4.—(1) Subject to the provisions of this section and the section next following, the Court of Criminal Appeal shall be duly constituted, for the purpose of hearing and determining appeals or any matter preliminary or incidental to an appeal, if it consists either of two or of three judges.

(2) Any matter preliminary or incidental to an appeal may be heard and determined by a single judge of the Court ; but an appellant who is aggrieved by the decision of a single judge

on any such matter shall be entitled to have the matter re-heard and determined by the Court as constituted under subsection (1) of this section.

PART I

(3) The Lord Chief Justice, if present, and in his absence the senior member of the Court, shall be president of the Court.

5.—(1) Where an appeal or matter before the Court of Judgment. Criminal Appeal is heard by two judges and those judges differ in opinion, it shall be re-heard by three judges; and where an appeal or matter before the Court is heard by three judges, it shall be determined according to the opinion of the majority of those judges.

(2) Unless the Court direct to the contrary in a case where they consider the question to be one of law on which it would be convenient that separate judgments should be pronounced by the members of the Court,—

- (a) the judgment of the Court shall be pronounced by the president of the Court or such other member of the Court hearing the case as the president directs; and
- (b) no judgment with respect to the determination of any question shall be separately pronounced by any other member of the Court.

6.—(1) The Registrar of the Supreme Court shall be the The Registrar. registrar of the Court of Criminal Appeal and is in this Act referred to as “the Registrar”.

(2) The Lord Chief Justice may direct any other officer of, or attached to, the Supreme Court to render such assistance to the Registrar as the Lord Chief Justice may think necessary for the purposes of this Act.

(3) In the event of a vacancy in the office of the Registrar, or of the incapacity of the Registrar to act from any reason, the Lord Chief Justice may direct another officer of the Supreme Court to exercise the powers and perform the duties of the Registrar under this Act.

7. Any direction which may be given by the Lord Chief Justice under the preceding sections may, in the event of any vacancy in that office or in the event of the incapacity of the Lord Chief Justice to act from any reason, be given by the senior judge of the Court of Criminal Appeal.

Functions of
Lord Chief
Justice under
ss. 1 to 6.

PART II

APPEALS TO COURT OF CRIMINAL APPEAL

Appeal against conviction and sentence

Right of
appeal.

8.—(1) A person convicted on indictment may appeal to the Court of Criminal Appeal against his conviction—

- (a) on any ground which involves a question of law alone ; and
- (b) with the leave of the Court, on any ground which involves a question of fact alone, or a question of mixed law and fact, or on any other ground which appears to the Court to be a sufficient ground of appeal ;

but if the judge of the court of trial grants a certificate that the case is fit for appeal on a ground which involves a question of fact, or of mixed law and fact, an appeal lies under this subsection without the leave of the Court of Criminal Appeal.

(2) A person convicted on indictment may appeal to the Court of Criminal Appeal against the sentence passed on his conviction, unless the sentence is one fixed by law ; but an appeal under this subsection lies only with the leave of the Court of Criminal Appeal.

Grounds for
allowing
appeal against
conviction.

9.—(1) Except as provided by this Act, the Court of Criminal Appeal shall allow an appeal against conviction where they are of opinion—

- (a) that the verdict of the jury should be set aside on the ground that under all the circumstances of the case it is unsafe or unsatisfactory ; or
- (b) that the judgment of the court of trial should be set aside on the ground of a wrong decision of any question of law ; or
- (c) that there was a material irregularity in the course of the trial,

and in any other case shall dismiss the appeal :

Provided that the Court may, notwithstanding that they are of opinion that the point raised in the appeal might be decided in favour of the appellant, dismiss the appeal if they consider that no miscarriage of justice has actually occurred.

(2) Except as provided by this Act, if the Court of Criminal Appeal allow an appeal against conviction, they shall quash the conviction.

(3) An order of the Court quashing a conviction shall, except when under section 13 of this Act the appellant is ordered to be retried, operate as a direction to the clerk of the Crown and peace

acting for the court of trial to enter, instead of the record of conviction, a judgment and verdict of acquittal. PART II

10.—(1) This section applies where an appellant has been convicted of an offence and the jury could on the indictment have found him guilty of some other offence, and on the finding of the jury it appears to the Court of Criminal Appeal that the jury must have been satisfied of facts which proved him guilty of that other offence. Power to substitute conviction of alternative offence.

(2) The Court may, instead of allowing or dismissing the appeal, substitute for the verdict found by the jury a verdict of guilty of that other offence and pass such sentence in substitution for the sentence passed at the trial as may be warranted in law by the verdict so substituted.

11. Where a person appeals against conviction on an indictment containing two or more counts and the Court of Criminal Appeal allow the appeal in respect of part of the indictment, they may in respect of any count on which he remains convicted pass such sentence, in substitution for the sentence passed thereon at the trial, as they think proper and is authorised by law for the offence of which he remains convicted on that count. Sentence when appeal allowed on part of an indictment.

12.—(1) This section applies on an appeal against conviction where the jury have found a special verdict. Appeal on special verdict.

(2) If the Court of Criminal Appeal consider that a wrong conclusion has been arrived at by the court of trial as to the effect of the jury's verdict, they may, instead of allowing the appeal, order such conclusion to be recorded as appears to them to be in law required by the verdict, and pass such sentence in substitution for the sentence passed at the trial as may be warranted in law by the verdict so substituted.

New trial

13.—(1) Where an appeal against conviction is allowed by the Court of Criminal Appeal under section 9 of this Act and it appears to the Court that the interests of justice so require, the Court, upon quashing the conviction and any sentence passed thereon, may order the appellant to be retried. Power to order new trial.

(2) Where, on an appeal to the Court of Criminal Appeal against a sentence imposed upon conviction on indictment, it appears to the Court that there has been a mistrial of the indictment, the Court may quash the conviction and sentence and may, if it appears to the Court that the interests of justice so require, order the appellant to be retried.

PART II

(3) An appellant shall not be retried by virtue of this section for any offence other than—

- (a) the offence of which he was convicted at the original trial;
- (b) any offence of which he could have been convicted at the original trial on an indictment for the first-mentioned offence;
- (c) any offence charged in an alternative count of the indictment in respect of which the jury were discharged from giving a verdict in consequence of that conviction.

Supplementary provisions as to new trial.

14.—(1) An appellant who is to be retried for an offence in pursuance of an order under section 13 of this Act shall be tried upon a fresh indictment preferred by the direction of the Court of Criminal Appeal and shall be tried before such court as the Court of Criminal Appeal may direct (being a court of assize or, if the offence is within the jurisdiction of a county court, a county court) or, if no such direction is given, before any court having jurisdiction to try an indictment for the offence for which he was originally tried.

(2) The Court of Criminal Appeal may, upon ordering a retrial under section 13 of this Act, make such orders as appear to them to be necessary or expedient for the custody or admission to bail of the appellant pending the retrial, or for the retention pending the retrial of any property or money forfeited, restored or paid by virtue of the original conviction or any order made on that conviction.

The powers of a single judge of the Court of Criminal Appeal under section 4(2) of this Act to hear and determine any matter incidental to an appeal shall include power to make, discharge and vary orders under this subsection.

(3) Where a retrial is ordered under section 13 of this Act in the case of a person who, immediately before the determination of his appeal, was liable to be detained in pursuance of an order or direction under Part III of the Mental Health Act (Northern Ireland) 1961, that order or direction shall continue in force pending the retrial as if the appeal had not been allowed, and any order made by the Court of Criminal Appeal under this section for his custody or admission to bail shall have effect subject to the order or direction under the said Part III.

(4) Schedule 1 to this Act has effect with respect to legal aid for a person ordered under section 13 of this Act to be retried, his retrial, and the sentence which may be passed if the retrial results in his conviction.

1961 c. 15
(N.I.).

Sentence

PART II

15. On an appeal to them against conviction or sentence the Court of Criminal Appeal shall, if they think that a different sentence should have been passed, quash the sentence passed at the trial and pass such other sentence authorised by law (whether more or less severe) in substitution therefor as they think ought to have been passed; but in no case shall any sentence be increased by reason or in consideration of any evidence that was not given at the trial.

Insanity

16. If, on an appeal, it appears to the Court of Criminal Appeal that, although the appellant did the act or made the omission charged against him, he was an insane person at the time the act was done or the omission made, the Court may—

- (a) quash the conviction and direct that a finding of not guilty on the ground of insanity be entered; and
- (b) quash the sentence passed at the trial and make any such order as may be made under section 56 of the Mental Health Act (Northern Ireland) 1961 (admission to hospital of persons found not guilty by reason of insanity).

17.—(1) A person in whose case a finding is recorded under section 56(2) of the Mental Health Act (Northern Ireland) 1961 that he was not guilty of the offence charged on the ground of insanity may appeal against that finding to the Court of Criminal Appeal—

- (a) on any ground of appeal which involves a question of law alone; and
- (b) with the leave of the Court, on any ground of appeal which involves a question of fact alone or a question of mixed law and fact, or any other ground which appears to the court to be a sufficient ground of appeal;

but if the judge of the court of trial grants a certificate that the case is fit for appeal on a ground which involves a question of fact, or of mixed law and fact, an appeal lies under this section without the leave of the Court of Criminal Appeal.

(2) The Court of Criminal Appeal, on an appeal under this section, shall (subject to subsections (3) and (4) below) allow the appeal where they are of opinion—

- (a) that the finding should be set aside on the ground that under all the circumstances of the case it is unsafe or unsatisfactory; or

PART II

(b) that any order made by the court of trial upon, or giving effect to, the finding should be set aside on the ground of a wrong decision of any question of law ; or

(c) that there was a material irregularity in the course of trial,

and in any other case shall dismiss the appeal.

(3) The Court may dismiss an appeal under this section if of opinion that notwithstanding that the point raised in the appeal might be decided in favour of the appellant, no miscarriage of justice has actually occurred.

(4) Where but for this subsection—

(a) an appeal under this section would fall to be allowed ; and

(b) none of the grounds for allowing it relates to the question of the insanity of the appellant,

the Court may dismiss the appeal if of opinion that but for the insanity of the accused the proper verdict would have been that he was guilty of an offence other than the offence charged.

Disposal of
appeal allowed
under s. 17. **18.—(1)** The following provisions apply where an appeal under section 17 of this Act is allowed in accordance with that section.

(2) If the ground, or one of the grounds, for allowing the appeal is that the finding of the jury as to the insanity of the accused ought not to stand, but the Court of Criminal Appeal are of opinion that the proper verdict would have been that he was guilty of an offence (whether the offence charged or any other offence of which the jury could have found him guilty), the Court—

(a) shall substitute for the finding of not guilty on the ground of insanity a verdict of guilty of that offence ; and

(b) subject to subsection (3) below, shall have the like powers of punishing or otherwise dealing with the appellant and all other powers as the court of trial would have had if the jury had returned that verdict.

(3) Where the offence mentioned in subsection (2) above is one for which the sentence fixed by law is one of death or of imprisonment for life, the sentence shall (whatever the circumstances) be one of imprisonment for life.

(4) In a case where the Court of Criminal Appeal allow an appeal under section 17 above but subsection (2) of this

section does not apply, the Court shall substitute for the finding of the jury a verdict of acquittal.

PART II

(5) An order of the Court allowing an appeal under section 17 of this Act shall operate as a direction to the clerk of the Crown and peace acting for that court of trial to amend the record to conform with the order.

(6) Where in accordance with subsection (4) of this section the Court of Criminal Appeal substitute a verdict of acquittal for a finding of not guilty on the ground of insanity, any order previously made in consequence of that finding under section 56(3) of the Mental Health Act (Northern Ireland) 1961 shall cease to have effect, so however that if the Court are of opinion—

- (a) that the appellant is suffering from mental illness or that he requires special care or is suffering from mental disorder of a nature or degree which warrants his detention in a hospital under section 12 of the said Act of 1961 ; and
 - (b) that he ought to be so detained in the interests of his own health or safety or for the protection of other persons,
- the Court may make an order that he be detained in any hospital in which he was detained by virtue of an order under the said section 56(3) ; and Schedule 2 to this Act shall apply as to the consequences and effect of an order made by the Court under this subsection.

Review of cases by Court of Criminal Appeal

19.—(1) Where a person has been convicted on indictment or, being charged on indictment with an offence, has been found not guilty on the ground of insanity, the Minister may, if he thinks fit,—

Reference by
Minister of
Home Affairs.

- (a) refer the whole case to the Court of Criminal Appeal and the case shall then be treated for all purposes as an appeal to the Court by that person ; or
- (b) if he desires the assistance of the Court on any point arising in the case, refer that point to the Court for their opinion thereon, and the Court shall consider the point so referred and furnish the Minister with their opinion thereon accordingly.

(2) The Minister's power of reference under this section shall be exercisable at any time, and whether or not there has been an appeal or an application for leave to appeal.

Procedure

20.—(1) Subject to subsection (2) below, a person who wishes to appeal to the Court of Criminal Appeal, or to obtain the Court's leave to appeal, shall give notice of appeal, or of his

Notice of
appeal or
application
for leave.

PART II

application for leave to appeal, in the prescribed manner within twenty-eight days from the date of the conviction, verdict or finding appealed against or, in the case of an appeal or application for leave to appeal against sentence, from the date on which sentence was passed or, in the case of an order made or treated as made on conviction, from the date of the making of the order.

(2) Subject to section 21 below, the time for giving notice of appeal or of application for leave to appeal may be extended at any time by the Court of Criminal Appeal.

(3) The Registrar shall furnish the necessary forms and instructions in relation to notices of appeal, or notices of application under this Act, to any person who demands them, and to officers of courts, governors of prisons and such other persons as he thinks fit; and governors of prisons shall—

(a) cause the forms and instructions to be placed at the disposal of prisoners desiring to appeal or to make any application under this Act; and

(b) cause any such notice given by a prisoner in custody to be forwarded on behalf of the prisoner to the Registrar.

Special provision as to sentence of death or corporal punishment.

21.—(1) The power of the Court of Criminal Appeal under section 20 of this Act to extend the time for giving notice of appeal, or of application for leave to appeal, shall not be exercisable in the case of a conviction involving sentence of death.

(2) In the case of a conviction involving sentence of death or corporal punishment—

(a) the sentence shall not in any case be executed until after the expiration of the time for giving notice of appeal or of application for leave to appeal under the said section 20; and

(b) if notice is so given, the appeal or application shall be heard and determined with as much expedition as practicable, and the sentence shall not be executed until after the determination of the appeal or, in a case where an application for leave to appeal is finally refused, of the application.

Bail.

22. The Court of Criminal Appeal may, if they think fit, on the application of an appellant, admit him to bail pending the determination of his appeal.

Presentation of appellant's case.

23.—(1) Provision shall be made by rules of court for enabling an appellant under this Part of this Act to present his case and his argument in writing, instead of by oral argument, if he so desires; and any case or argument so presented shall be considered by the Court of Criminal Appeal.

PART II

(2) The Court may at any time, when it appears to them in the case of an appeal or proceedings preliminary or incidental thereto that it is desirable in the interests of justice that the appellant should have legal aid and that he has not sufficient means to enable him to obtain that aid, assign to the appellant a solicitor and counsel, or counsel only, in the appeal or proceedings.

(3) If on a question of granting a person free legal aid under this section there is a doubt whether his means are sufficient to enable him to obtain legal aid or whether it is desirable in the interests of justice that he should have free legal aid, the doubt shall be resolved in favour of granting him free legal aid.

(4) The Registrar shall report to the Court or a judge thereof any case in which it appears to him that, although no application has been made for the purpose, a solicitor and counsel, or counsel only, ought to be assigned to an appellant under the powers conferred on the Court by this section.

24.—(1) The Registrar shall take all necessary steps for obtaining a hearing of any appeal or application to the Court of Criminal Appeal under this Act, notice of which is given to him thereunder, and shall obtain and lay before the Court in proper form all documents, exhibits and other things relating to the proceedings in the court of trial which appear necessary for the proper determination of the appeal or application. Duties of registrar with respect to appeals.

(2) If it appears to the Registrar that a notice of appeal under this Part of this Act purporting to be on a ground of appeal which involves a question of law alone does not show any substantial ground of appeal, he may refer the appeal to the Court for summary determination; and the Court may then, if they consider that the appeal is frivolous or vexatious, and can be determined without adjourning the proceedings for a full hearing, dismiss the appeal summarily without calling on any one to attend the hearing or to appear for the Crown thereon.

Transcripts, documents, etc.

25.—(1) Rules of court may provide—

Transcripts.

- (a) for the making of a record (whether by means of shorthand notes, by mechanical means or otherwise) of any proceedings in respect of which an appeal lies (with or without leave) to the Court of Criminal Appeal; and
- (b) for the making and verification of a transcript of any such record and for supplying the transcript, on payment of such charge, if any, as may be fixed for the time being by the Treasury, to the Registrar for the use of the Court or any judge thereof, and to such other persons and in such circumstances as may be prescribed by the rules.

PART II

(2) Without prejudice to subsection (1) above, the Minister may, if he thinks fit in any case, direct that a transcript shall be made of any such record made in pursuance of the rules and shall be supplied to him.

(3) The cost—

(a) of making any such record in pursuance of the rules ; and

(b) of making and supplying in pursuance of this section any transcript ordered to be supplied to the Registrar or the Minister,

shall be defrayed, in accordance with scales of payment fixed for the time being by the Treasury, out of moneys provided by Parliament, and the cost of providing and installing at any court any equipment required for the purpose of making any such record or transcript shall also be defrayed out of moneys so provided.

Trial documents, etc.

26. Any documents, exhibits or other things connected with the proceedings on a trial on indictment shall be kept in the custody of the court of trial, in accordance with such provisions as may be prescribed, for such time as may be prescribed and subject to such power as may be prescribed for the conditional release of any such documents, exhibits or things from that custody.

Judge's notes and report.

27. In the case of an appeal under this Part of this Act, or an application for leave to appeal thereunder, the judge of the court of trial shall furnish to the Registrar in the prescribed manner his notes of the trial and a report giving his opinion upon the case or any point arising in it.

The hearing

Right of appellant to be present.

28.—(1) Except as provided by this section, an appellant shall be entitled to be present, if he desires it, on the hearing of his appeal, although he may be in custody.

(2) A person in custody shall not be entitled to be present—

(a) where the appeal is on some ground involving a question of law alone ; or

(b) on any proceedings preliminary or incidental to an appeal,

unless rules of court provide that he is to be so entitled or the Court of Criminal Appeal give him leave to be present ; nor shall he be so entitled where he is in custody in consequence of a finding of not guilty on the ground of insanity.

(3) The power of the Court to pass sentence may be exercised notwithstanding that the appellant is for any reason not present.

29.—(1) For the purposes of this Part of this Act, the Court of Criminal Appeal may, if they think it necessary or expedient in the interests of justice— PART II
Evidence.

- (a) order the production of any document, exhibit, or other thing connected with the proceedings, the production of which appears to them necessary for the determination of the case ;
- (b) order any witness who would have been a compellable witness at the trial to attend and be examined before the Court, whether or not he was called at the trial ; and
- (c) subject to subsection (3) below, receive the evidence, if tendered, of any witness.

(2) Without prejudice to subsection (1) above, where evidence is tendered to the Court under that subsection the Court shall, unless they are satisfied that the evidence if received would not afford any ground for allowing the appeal, exercise their power of receiving it if—

- (a) it appears to them that the evidence is likely to be credible and would have been admissible at the trial on an issue which is the subject of the appeal ; and
- (b) they are satisfied that it was not adduced at the trial but there is a reasonable explanation for the failure to adduce it.

(3) Subsection (1)(c) above applies to any witness (including the appellant) who is competent but not compellable, and applies also to the appellant's husband or wife where the appellant makes an application for that purpose and the evidence of the husband or wife could not have been given at the trial except on such an application.

30.—(1) For the purposes of this Part of this Act, the Court of Criminal Appeal may exercise any of the following powers, where they think it necessary or expedient in the interests of justice:— Additional
powers of
Court.

- (a) in the case of any witness whose attendance might be required under section 29(1)(b) above, they may order his examination to be conducted in the prescribed manner before a judge of the Court or before any other person appointed by the Court for the purpose, and allow the admission of any deposition so taken as evidence before the Court ;
- (b) where a question arising on an appeal involves prolonged examination of documents or accounts, or any scientific or local investigation, which cannot in the opinion of the Court conveniently be conducted before them, they may order the reference of the

PART II

question in the prescribed manner for inquiry and report to a special commissioner appointed by the Court, and act upon the report of the commissioner so far as they think fit to adopt it ;

- (c) they may appoint a person with special expert knowledge to act as assessor to the Court in a case where it appears to them that such knowledge is required for the proper determination of the case.

(2) The Court may, in relation to their proceedings, exercise any other powers which may for the time being be exercised by the Court of Appeal on appeals in civil matters, and may issue any warrants necessary for enforcing the orders or sentences of the Court.

Supplementary

Restitution of property. 31.—(1) Except as provided by this section the operation of an order made on a conviction on indictment for the restitution of property to any person, and the operation in case of any such conviction of section 24(1) of the Sale of Goods Act 1893 (56 & 57 Vict.) as to the revesting of property in stolen goods on conviction, shall be suspended—

- (a) in any case until the expiration of twenty-eight days from the date of conviction ; and
- (b) in cases where notice of appeal or of application for leave to appeal is given within twenty-eight days from the date of conviction, until the determination of the appeal.

(2) Subsection (1) of this section shall not apply where the court of trial direct to the contrary in the case of any order, the title to the property in question not being, in their opinion, in dispute.

(3) In cases where the operation of any such order or of the said section 24(1) is suspended until the determination of the appeal, the order or that subsection, as the case may be, shall not take effect as to the property in question if the conviction is quashed on appeal.

(4) Provision may be made by rules of court for securing the safe custody of any property pending the suspension of the operation of any such order or of the said section 24(1).

(5) The Court of Criminal Appeal may by order annul or vary an order made on a trial for the restitution of property to any person, although the conviction is not quashed ; and the order, if annulled, shall not take effect and, if varied, shall take effect as so varied.

32.—(1) Except as provided by any enactment of the Parliament of Northern Ireland, no costs shall be allowed on the hearing and determination of an appeal under this part of this Act, or of proceedings preliminary or incidental to such an appeal. PART II
Costs.

(2) The following expenses shall be defrayed, up to an amount allowed by the Court of Criminal Appeal, by the Ministry:—

- (a) the expenses of any solicitor or counsel assigned to an appellant under this Part of this Act;
- (b) the expenses of any witnesses attending on the order of the Court of Criminal Appeal, or examined in any proceedings incidental to the appeal;
- (c) the expenses of the appearance of an appellant on the hearing of his appeal, or in proceedings preliminary or incidental thereto;
- (d) all expenses of or incidental to any examination of witnesses conducted by a person appointed by the Court for the purpose; and
- (e) all expenses of or incidental to any reference of a question to a special commissioner appointed by the Court, or of any person appointed as assessor to the Court.

33.—(1) The time during which an appellant, pending the determination of his appeal, is not detained in custody shall not count as part of any term of imprisonment under his sentence. Computation
of sentence.

(2) The time during which an appellant is in custody pending the determination of his appeal shall, subject to any direction which the Court of Criminal Appeal may give to the contrary, be reckoned as part of the term of any sentence to which he is for the time being subject; but the Court shall not give any such direction where leave to appeal has been granted or a certificate has been given under section 8 of this Act, or where the case has been referred to them under section 19 of this Act.

(3) When the Court give a direction under subsection (2) of this section, they shall state their reasons for giving it.

(4) The term of any sentence passed by the Court in the exercise of their powers under section 18(2) of this Act shall, unless the Court otherwise direct, begin to run from the time when it would have begun to run if passed in the proceedings from which the appeal lies.

PART II
Appeal in
cases otherwise
than on
indictment.
1950 c. 5
(N.I.).

34. This Part of this Act shall apply to the case of a parent or guardian subject to an order made by a court of assize or a county court under section 57 of the Children and Young Persons Act (Northern Ireland) 1950, as if he had been tried and convicted on indictment and the order had been a sentence passed on the conviction.

Interpretation
for Part II.

35. In this Part of this Act, unless the context otherwise requires,—

“appellant” includes a person who has given notice of application for leave to appeal ;

“the court of trial” means, in relation to an appeal, the court from which the appeal lies ;

1966 c. 20
(N.I.).

“insane person” has the meaning given to it by section 1 of the Criminal Justice Act (Northern Ireland) 1966, and “insanity” shall be construed accordingly ;

“sentence” includes any order of the court of trial made on conviction with reference to the person convicted or his wife or children, and any recommendation of that court as to the making of a deportation order in the case of a person convicted ;

and a power of the Court of Criminal Appeal to pass sentence includes power to make any such order or recommendation which could lawfully have been made by the court of trial.

PART III

APPEAL FROM COURT OF CRIMINAL APPEAL TO HOUSE OF LORDS

The appeal

Right of
appeal to
House of
Lords.

36.—(1) Subject to the provisions of this Part of this Act, an appeal lies to the House of Lords, at the instance of the defendant or the prosecutor, from any decision of the Court of Criminal Appeal on an appeal to that Court.

(2) No appeal lies under this Part of this Act except with the leave of the Court of Criminal Appeal or of the House of Lords ; and such leave shall not be granted unless it is certified by the Court that a point of law of general public importance is involved in the decision and it appears to the Court or to the House of Lords (as the case may be) that the point is one which ought to be considered by that House.

(3) In this Part of this Act “the defendant” means, in relation to an appeal, the person who was the appellant before the Court of Criminal Appeal, and references to the prosecutor shall be construed accordingly.

37.—(1) Subject to subsection (2) below, an application to the Court of Criminal Appeal for leave to appeal under this Part of this Act shall be made within the period of fourteen days beginning with the date of the decision of the Court; and an application to the House of Lords for such leave shall be made within the period of fourteen days beginning with the date on which the application is refused by the Court. PART III
Application for leave to appeal.

(2) Subject to section 39 below, the House of Lords or the Court of Criminal Appeal may, upon application made at any time by the defendant, extend the time within which an application may be made by him to that House or the Court under subsection (1) above.

(3) An appeal under this Part of this Act shall be treated as pending until any application for leave to appeal is disposed of and, if leave to appeal is granted, until the appeal is disposed of; and for the purposes of this Part of this Act an application for leave to appeal shall be treated as disposed of at the expiration of the time within which it may be made, if it is not made within that time.

38.—(1) An appeal under this Part of this Act shall not be heard and determined by the House of Lords unless there are present at least three of the persons designated Lords of Appeal by section 5 of the Appellate Jurisdiction Act 1876. Hearing and disposal of appeal.
1876 c. 59.

(2) Any order of the House of Lords which provides for the hearing of applications for leave to appeal under this Part of this Act by a committee constituted in accordance with section 5 of the said Act of 1876 may direct that the decision of that committee shall be taken on behalf of the House.

(3) For the purpose of disposing of an appeal under this Part of this Act, the House of Lords may exercise any powers of the Court of Criminal Appeal or may remit the case to the Court.

39.—(1) In a case involving sentence of death—

- (a) the power of the Court of Criminal Appeal or the House of Lords under section 37 of this Act to extend the time for making an application for leave to appeal shall not be exercisable; and
- (b) an application for leave to appeal under this Part of this Act, and any appeal for which leave is granted on the application, shall be heard and determined with as much expedition as practicable.

Special provision for capital cases.

(2) Where an appeal to the Court of Criminal Appeal is dismissed in a case involving sentence of death, the sentence shall not in any case be executed until after the expiration of the time for making an application for leave to appeal under this

PART III Part of this Act; and if such an application is duly made, the sentence shall not be executed while that application, and any appeal for which leave to appeal is granted thereon, is pending.

Preliminary proceedings

Bail on appeal by accused. 40. The Court of Criminal Appeal may, if they think fit, on the application of an appellant under this Part of this Act or a person applying for leave to appeal thereunder, admit him to bail pending an appeal from the Court.

Detention of accused pending appeal by the Crown. 41.—(1) Where the defendant in any proceedings from which an appeal lies to the House of Lords under this Part of this Act would, but for the decision of the Court of Criminal Appeal, be liable to be detained and immediately after that decision the prosecutor is granted, or gives notice that he intends to apply for, leave to appeal, the Court may make an order providing for his detention, or direct that he shall not be released except on bail (which may be granted by the Court as under section 40 above) so long as an appeal under this Part of this Act is pending.

(2) An order under subsection (1) above shall (unless the appeal has previously been disposed of) cease to have effect at the expiration of the period for which the defendant would have been liable to be detained but for the decision of the Court of Criminal Appeal.

(3) When an order is made under this section in the case of a defendant who, but for the decision of the Court of Criminal Appeal, would be liable to be detained in pursuance of an order or direction under the Mental Health Act (Northern Ireland) 1961, the order under this section shall be one authorising his continued detention in pursuance of the order or direction, and the provisions of the said Act of 1961 with respect to persons so liable (including provisions as to the renewal of authority for detention and the removal or discharge of patients) shall apply accordingly.

(4) Where the Court of Criminal Appeal have power to make an order under this section, and either no such order is made or the defendant is released or discharged by virtue of subsection (2) or subsection (3) above, before the appeal is disposed of, the defendant shall not be liable to be again detained as the result of the decision of the House of Lords on the appeal.

Legal aid. 42.—(1) The Court of Criminal Appeal may at any time when it appears to them, in the case of an appeal from the Court under this Part of this Act or of proceedings preliminary or incidental to such an appeal, that it is desirable in the interests

1961 c. 15
(N.I.).

of justice that the defendant should have legal aid, and that he has not sufficient means to enable him to obtain that aid, assign to him (whether he is appellant or respondent in the appeal) a solicitor and counsel, or counsel only, in the appeal or proceedings.

PART III

(2) If on a question of granting a person free legal aid under this section there is a doubt whether his means are sufficient to enable him to obtain legal aid or whether it is desirable in the interests of justice that he should have free legal aid, the doubt shall be resolved in favour of granting him free legal aid.

(3) The fees of any counsel, and the expenses and fees of any solicitor, assigned to a defendant by virtue of this section, in either case up to an amount allowed by the House of Lords or by such officer or officers of that House as may be prescribed by order of that House, shall be paid by the Ministry.

43. A defendant who is detained pending an appeal under this Part of this Act shall not be entitled to be present on the hearing of the appeal or of any proceedings preliminary or incidental thereto, except where an order of the House of Lords or rules of court, as the case may be, authorise him to be present or where that House or the Court of Criminal Appeal, as the case may be, give him leave to be present.

Presence of defendant at hearing.

Matters arising out of appeal

44.—(1) If a person subject to a sentence is admitted to bail pending an appeal under this Part of this Act, the time during which he is at large after being so admitted shall be disregarded in computing the term of his sentence.

Effect of appeal on sentence.

(2) Subject to the foregoing subsection, any sentence passed on such an appeal in substitution for another sentence shall, unless the House of Lords or the Court of Criminal Appeal otherwise direct, begin to run from the time when the other sentence would have begun to run.

45.—(1) Where the operation of an order for the restitution of property made on conviction on indictment is suspended until the determination of an appeal to the Court of Criminal Appeal, then, if the conviction is not quashed on that appeal, the operation of the order shall continue to be suspended—

Restitution of property.

(a) in any case until the expiration of the time within which an application for leave to appeal under this Part of this Act may be made (disregarding any extension of time which may be granted under section 37(2) of this Act); and

PART III

(b) if any such application is made within that time, so long as the appeal under this Part of this Act is pending.

(2) Where the operation of any such order as aforesaid is suspended under this section,—

(a) the order shall not take effect if the conviction is quashed on appeal to the House of Lords ; and

(b) such steps shall be taken for the safe custody of the property in question during the period during which the operation of the order is suspended as may be prescribed by rules of court.

(3) Where by reason of the quashing by the Court of Criminal Appeal of a person's conviction such an order does not take effect and on an appeal under this Part of this Act the conviction is restored by the House of Lords, that House may make any order for the restitution of property which could be made on his conviction by the court which convicted him.

1894 c. 71

(56 & 57 Vict.). (4) This section applies in relation to section 24(1) of the Sale of Goods Act 1893 (revesting of stolen property on conviction of thief) as it applies in relation to an order for the restitution of property ; and without prejudice to the powers of the House of Lords under subsection (3) of this section, the said section 24(1) shall apply in any case where a conviction on indictment is restored by that House as it applies on the conviction of an offender.

Costs.

46.—(1) Where the Court of Criminal Appeal or the House of Lords dismiss an application for leave to appeal from that court, the Court or the House may, if they think fit,—

(a) where the application was made by the prosecutor, order the payment by the Ministry to the defendant of such sums as appear to the Court or the House reasonably sufficient to compensate the defendant for any expenses properly incurred by him in resisting the application ; or

(b) where the application was made by the defendant, order him to pay the whole or any part of the costs of the application.

(2) Where an appeal to the House of Lords from the Court of Criminal Appeal under this Part of this Act is determined in favour of the defendant, the House of Lords may, if they think fit, order the payment by the Ministry of such sums as appear to the House reasonably sufficient to compensate the defendant for any expenses properly incurred by him—

(a) in the appeal to the House of Lords or in the proceedings before the Court of Criminal Appeal, as the

case may be (including the cost of any application for leave to appeal) ; or

- (b) in carrying on his defence before the court of assize or county court, at the preliminary investigation and before any other court of assize or county court before which proceedings for the offence in respect of which he was committed for trial were begun but not concluded.

(3) Except as provided by this section, no costs shall be allowed on the hearing or determination of an appeal under this Part of this Act or of any proceedings preliminary or incidental to such an appeal.

47.—(1) Any amount which the Court of Criminal Appeal order to be paid under section 46(1) of this Act shall, except where it is a specific amount ordered to be paid towards the costs of the application as a whole, be ascertained as soon as practicable by the Court. Taxation of costs.

(2) Any amount which the House of Lords order to be paid under section 46(1) or (2) of this Act shall, except as aforesaid, be ascertained as soon as practicable by such officer or officers, and in such manner, as may be prescribed by order of the House of Lords.

(3) Where the Court of Criminal Appeal or the House of Lords order the payment of costs by the defendant under section 46 of this Act, the order shall be enforceable in the same manner as an order for payment of costs made by the High Court in a civil case.

Supplementary

48. The following powers of the Court of Criminal Appeal under this Part of this Act may be exercised by any judge of the Court:— Powers of Court of Criminal Appeal which are exercisable by single judge.

- (a) the power to extend the time for applying for leave to appeal ;
- (b) the power to make an order for or in relation to bail ;
- (c) the power to grant free legal aid ;
- (d) the power to give leave for a defendant to be present at the hearing of any proceedings preliminary or incidental to an appeal ;

but where the judge refuses an application to exercise any such power, the applicant shall be entitled to have the application determined by the Court.

PART IV

GENERAL

Rules of
court.
1962 c. 30.

49.—(1) Rules may be made under section 7(1) of the Northern Ireland Act 1962—

(a) for regulating generally the practice and procedure under Parts I and II of this Act and under Part III of this Act so far as it relates to the Court of Criminal Appeal; and

(b) for prescribing anything which by Part II of this Act is required or authorised to be prescribed.

(2) The officers of any court before which an appellant has been convicted or, being charged on indictment with an offence, has been found not guilty by reason of insanity, and the governor or other officers of any prison or other officer having the custody of an appellant, and all other persons, shall comply with any rules having effect by virtue of subsection (1) of this section so far as affecting those officers or persons; and compliance with such rules may be enforced by order of the Court of Criminal Appeal.

(3) No rule affecting the governor or any other officer of a prison or any officer having the custody of an appellant shall be made under section 7(1) of the said Act of 1962 by virtue of subsection (1) of this section except after consultation with the Ministry.

Interpretation
(general).

1959 c. 25
(N.I.).

50.—(1) In this Act—

“county court” means a county court held for a division under the County Courts Act (Northern Ireland) 1959;

“the Court of Appeal” means Her Majesty’s Court of Appeal in Northern Ireland;

“enactment” includes an enactment of the Parliament of Northern Ireland;

“the High Court” means Her Majesty’s High Court of Justice in Northern Ireland;

“the Lord Chief Justice” means the Lord Chief Justice of Northern Ireland;

“the Minister” and “the Ministry” mean respectively the Minister and Ministry of Home Affairs for Northern Ireland;

“prescribed” means prescribed by rules of court;

“rules of court” means rules made or having effect as if made under section 7 of the Northern Ireland Act 1962; and

“the Supreme Court” means the Supreme Court of Judicature of Northern Ireland.

(2) Any reference in this Act to another enactment is a reference thereto as amended by or under any other enactment, including this Act.

PART IV

(3) Any reference in this Act to an enactment of the Parliament of Northern Ireland shall be construed as including a reference to an enactment corresponding thereto and for the time being in force in Northern Ireland.

51. Nothing in this Act is to be taken as affecting the prerogative of mercy. Saving for prerogative of mercy.

52.—(1) No limitation or restriction imposed by the Government of Ireland Act 1920 on the power of the Parliament of Northern Ireland to make laws shall preclude that Parliament from enacting provisions— Legislative powers of Parliament of Northern Ireland.

(a) conferring any jurisdiction or power on the Court of Criminal Appeal or any judge or officer of that court; 1920 c. 67.

(b) empowering the making of rules under section 7(1) of the Northern Ireland Act 1962 for regulating the procedure and practice of that court. 1962 c. 30.

(2) For the purposes of section 6 of the Government of Ireland Act 1920, this Act shall, so far as it relates to matters within the powers of the Parliament of Northern Ireland, be deemed to be an Act passed before the appointed day within the meaning of that section.

53.—(1) The enactments specified in Schedule 3 to this Act (being, in the case of Part I of the Schedule, enactments of the Parliament of the United Kingdom and, in the case of Part II, enactments of the Parliament of Northern Ireland) shall be amended as shown in that Schedule. Consequential amendment of enactments; transitional provisions.

(2) The transitional provisions set out in Schedule 4 to this Act shall have effect.

(3) Nothing in this section is to be taken as affecting the general application of section 38 of the Interpretation Act 1889 with regard to the effect of repeals; and that section shall have the like operation in relation to any repeal by this Act of an enactment of the Parliament of Northern Ireland as it has in relation to the repeal of an Act of the Parliament of the United Kingdom. 1889 c. 63.

54. The enactments specified in the second column of Schedule 5 to this Act, in so far as they apply to Northern Ireland, are hereby repealed to the extent specified in the third column of that Schedule. Repeals.

55.—(1) This Act may be cited as the Criminal Appeal (Northern Ireland) Act 1968. Short title and commencement.

(2) This Act shall come into operation on the day appointed for the coming into operation of section 98 of the Criminal Justice Act 1967. 1967 c. 80.

SCHEDULES

Section 14.

SCHEDULE 1

PROVISIONS APPLICABLE ON RETRIAL

Legal Aid

- 1965 c. 8 (N.I.). 1. Section 21 of the Legal Aid and Advice Act (Northern Ireland) 1965 (grant of defence certificate to person returned for trial on indictment) shall apply in the case of an appellant who is to be retried by virtue of an order under section 13 of this Act as if he had been committed for trial for the offence or the offences in question, and as if references in subsection (2) of the said section 21 to a magistrates' court included references to the Court of Criminal Appeal.

Depositions

- 1964 c. 21 (N.I.). 2. On a retrial ordered under section 13 of this Act, section 50(1) of the Magistrates' Courts Act (Northern Ireland) 1964 (reading of depositions) shall not apply to the depositions of any person who gave evidence at the original trial, but a transcript of the shorthand notes of the evidence given by any witness at the original trial may, with the leave of the judge, be read as evidence—

(a) by agreement between the prosecution and the defence ; or

(b) if the judge is satisfied that the witness is dead or unfit to give evidence or to attend for that purpose, or that all reasonable efforts to find him or to secure his attendance have been made without success ;

and in either case may be so read without further proof if verified in accordance with rules of court.

Conviction and sentence

3. Notwithstanding any rule of law to the contrary, a person ordered to be retried under section 13 of this Act may, if found guilty, be convicted on the retrial and the court before whom he is so convicted may pass in respect of the offence of which he is so convicted any sentence authorised by law to be imposed upon a conviction for that offence.

4. Without prejudice to the power of the court to impose any other sentence, the court before whom a person is convicted on retrial may pass in respect of the offence any sentence lawfully passed in respect of the offence charged on the original conviction notwithstanding that, on the date of the conviction on retrial, that person has ceased to be of an age at which such a sentence could otherwise be passed.

5. Where the person convicted on retrial is sentenced to imprisonment or other detention, the sentence shall begin to run from the time when such a sentence passed at the original trial would have begun to run ; but, in computing the term of his sentence or the

period for which he may be detained thereunder, as the case may be, there shall be disregarded— SCH. 1

- (a) any time before his conviction on retrial which would have been disregarded if the sentence had been passed at the original trial and the original conviction had not been quashed ; or
- (b) any time during which he was at large after being admitted to bail under section 22 of this Act.

SCHEDULE 2

Section 18.

EFFECT OF ORDERS UNDER SECTION 18(6) FOR DETENTION IN HOSPITAL

1.—(1) An order for detention under section 18(6) of this Act shall be sufficient authority for a constable, a welfare officer or any other person directed by the Court of Criminal Appeal to take the person to whom the order relates and convey him at any time within the period of seven days beginning with the date on which the order was made, to the hospital mentioned in that subsection.

(2) The Court of Criminal Appeal may give such directions as it thinks fit for the conveyance of the person to whom the order relates to a place of safety within the meaning of section 105(6) of the Mental Health Act (Northern Ireland) 1961 and his detention therein pending his admission to hospital within the said period of seven days. 1961 c. 15 (N.I.)

(3) Where a person is ordered under section 18(6) of this Act to be detained in a hospital, the order shall be sufficient authority to detain him in the hospital in accordance with the provisions of the said Act of 1961, as applied by the next following paragraph.

2. A person who is detained in hospital in pursuance of an order under section 18(6) of this Act shall be treated for the purposes of Part II of the Mental Health Act (Northern Ireland) 1961 as if he had been admitted on the date of the order in pursuance of an application for admission duly made under section 12 of that Act.

SCHEDULE 3

Section 53(1).

CONSEQUENTIAL AMENDMENT OF ENACTMENTS

PART I

ENACTMENTS OF THE PARLIAMENT OF UNITED KINGDOM

THE ADMINISTRATION OF JUSTICE ACT 1960 (c. 65)

Section 1

At the end of the section, in the form in which it applies to Northern Ireland by virtue of section 18(4) of, and Schedule 2 to, the Act, there shall be added the following subsection:—

“(6) Except as provided by this Act or the Criminal Appeal (Northern Ireland) Act 1968, no appeal lies from any judgment of the High Court of Justice in Northern Ireland in any criminal cause or matter.”

SCH. 3 *Section 13*

For subsection (6), in the form in which it applies to Northern Ireland by virtue of section 18(4) of, and Schedule 2 to, the Act, there shall be substituted the following subsection:—

“(6) This section does not apply to a conviction or sentence in respect of which an appeal lies under Part II of the Criminal Appeal (Northern Ireland) Act 1968 or to a decision of the Court of Criminal Appeal in Northern Ireland under that Part of that Act; and for the purposes of that Act and of this subsection an order for the punishment of any person for contempt of court in proceedings in which he has a right of appeal against his sentence shall be treated as part of that sentence.”

PART II

ENACTMENTS OF THE PARLIAMENT OF NORTHERN IRELAND
THE CRIMINAL JUSTICE ACT (NORTHERN IRELAND) 1945 (c. 15)

Section 33(4)

For the words “the Criminal Appeal (Northern Ireland) Act 1930” there shall be substituted the words “Part II of the Criminal Appeal (Northern Ireland) Act 1968”.

THE PRISON ACT (NORTHERN IRELAND) 1953 (c. 18)

Section 13(4)

In paragraph (d) for the words “the Criminal Appeal (Northern Ireland) Act 1930” there shall be substituted the words “Part II of the Criminal Appeal (Northern Ireland) Act 1968”.

THE COUNTY COURTS ACT (NORTHERN IRELAND) 1959 (c. 25)

Section 45

For the words “the Criminal Appeal (Northern Ireland) Act 1930” there shall be substituted the words “Part II of the Criminal Appeal (Northern Ireland) Act 1968”.

THE MENTAL HEALTH ACT (NORTHERN IRELAND) 1961 (c. 15)

Section 56(4)

For the words “sections 15 or 16 of the Criminal Justice Act (Northern Ireland) 1966” there shall be substituted the words “section 17 or 18 of the Criminal Appeal (Northern Ireland) Act 1968”.

Section 59(2)

In paragraph (a), for the words “section 17 of the Criminal Justice Act (Northern Ireland) 1966” there shall be substituted the words “section 13 of the Criminal Appeal (Northern Ireland) Act 1968”.

Section 53(2).

SCHEDULE 4

TRANSITIONAL PROVISIONS

1.—(1) Any right of appeal subsisting immediately before the commencement of this Act by virtue of an enactment repealed thereby shall after that commencement be treated as subsisting by virtue of the corresponding provision of this Act.

(2) Any appeal or application pending before the said commencement under an enactment so repealed may be prosecuted and disposed of in accordance with the provisions of this Act corresponding to those in force immediately before the said commencement and applicable to the appeal or application.

SCH. 4

2.—(1) In so far as any order or rule made or having effect as if made, direction given or other thing done under or by virtue of an enactment repealed by this Act could have been made, given or done under or by virtue of a corresponding provision of this Act, it shall not be invalidated by the repeal of that enactment but shall have effect as if made, given or done under or by virtue of that corresponding provision.

(2) Any document referring to an enactment repealed by this Act shall, so far as may be necessary for preserving its effect, be construed as referring or as including a reference to the corresponding enactment in this Act.

3. References in this Schedule to enactments repealed by this Act shall be construed as including references to enactments which are reproduced in this Act in relation to matters for which provision is made by this Act while remaining unrepealed in relation to matters for which provision is made by another Act; and section 38 of the Interpretation Act 1889 shall apply with respect to any such enactment as if it had been repealed by this Act in relation to matters for which provision is made by this Act. 1889 c. 63.

SCHEDULE 5

Section 54.

REPEALS

ENACTMENTS OF THE PARLIAMENT OF THE UNITED KINGDOM

Chapter	Short Title	Extent of Repeal
20 & 21 Geo. 5. c. 45.	The Criminal Appeal (Northern Ireland) Act 1930.	The whole Act.
8 & 9 Eliz. 2. c. 65.	The Administration of Justice Act 1960.	Section 1(1)(b). Section 3(2). Section 4(1). Sections 7 and 8. Section 9(1) and (4). Section 18(1). In Schedule 2, paragraph 4 of Part I and, in Part II, the modification of section 8. In Schedule 3, the entry relating to the Criminal Appeal (Northern Ireland) Act 1930.
10 & 11 Eliz. 2. c. 30.	The Northern Ireland Act 1962.	Section 6. In section 29(1), the definition of "the Court of Criminal Appeal".

SCH. 5

ENACTMENTS OF THE PARLIAMENT OF THE UNITED KINGDOM

Chapter	Short Title	Extent of Repeal
10 & 11 Eliz. 2. c. 30.— <i>cont.</i>	The Northern Ireland Act 1962.— <i>cont.</i>	In Part I of Schedule 1, so much as amends the Criminal Appeal (Northern Ireland) Act 1930 and section 18 of the Administration of Justice Act 1960 and paragraph 4 of Part I of Schedule 2 to that Act.
1966 c. 31.	The Criminal Appeal Act 1966.	Sections 5, 6, 7 and 11; and section 12(5).
1967 c. 80.	The Criminal Justice Act 1967.	Section 98(6) and (7). In section 106(3)(d), the words "the Criminal Appeal (Northern Ireland) Act 1930", and the words from "sections 7" onwards. In Schedule 4, paragraphs 9 to 15, 25(a), 29, 36, 37, 39 and 41.

ENACTMENTS OF THE PARLIAMENT OF NORTHERN IRELAND

Chapter	Short Title	Extent of Repeal
1950 c. 5. (N.I.)	The Children and Young Persons Act (Northern Ireland) 1950.	In section 57(5), paragraph (b).
1954 c. 33. (N.I.)	The Interpretation Act (Northern Ireland) 1954.	In section 42(1), in the definition of "Court of Criminal Appeal", the words "constituted under section one of the Criminal Appeal (Northern Ireland) Act 1930".
1961 c. 15. (N.I.)	The Mental Health Act (Northern Ireland) 1961.	Section 56(5).
1965 c. 8. (N.I.)	The Legal Aid and Advice Act (Northern Ireland) 1965.	In section 23, paragraph (b).
1966 c. 20. (N.I.)	The Criminal Justice Act (Northern Ireland) 1966.	In section 3(3), the words "and in the subsection substituted by that section for section 4(4) of the Criminal Appeal (Northern Ireland) Act 1930" and the words "and in the said substituted subsection". In Part III, sections 15 to 20 and section 22. Schedule 1.
1967 c. 18. (N.I.)	The Criminal Law Act (Northern Ireland) 1967.	In Schedule 1, paragraph 27.